

[1] PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON

[2] PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE ESTATE

APPEARANCE REQUIRED

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Fedex Corporate Services, Inc. v. Wine Specialty Services LLC

23CV001063

PLAINTIFF’S MOTION TO ENFORCE SETTLEMENT

TENTATIVE RULING: The motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Fedex Corporate Services, Inc. (“Plaintiff”) moves, pursuant to Code of Civil Procedure section 664.6,¹ for an order enforcing the Stipulation for Entry of Judgment & Conditional Dismissal Under CCP 664.6 (“Settlement Agreement”) and entry of judgment in accordance with the terms of the Settlement Agreement between Plaintiff and Defendant Wine Specialty Services, LLC (“Defendant”).

The matter originally came on for hearing on August 5, 2026. The Court posted a Tentative Ruling the day prior, in which it continued the matter and directed Plaintiff to file an Amended Memorandum and Declaration to correct or otherwise explain an apparent error in the moving papers filed on June 24, 2026. After the Tentative Ruling was posted, Plaintiff filed the Amended Memorandum and Declaration correcting the error.

“If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement.” (§ 664.6, subd. (a).)

From the evidence presented by Plaintiff, the Court finds as follows:

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

- 1) Pursuant to the Settlement Agreement, the parties agreed that judgment shall be entered in favor of Plaintiff and against Defendant in the total amount of \$436,856.13 (= \$339,017.77 principal + \$531.40 court costs + \$96,106.96 interest + \$1,200 attorney fees), less any amount paid prior to entry of judgment. (Amended Declaration of Long K. Bui (“Bui Decl.”), Exh. A.)
- 2) The parties agreed that the Settlement Agreement shall not be filed with the Court and enforcement of the judgment shall be stayed unless and until an Event of Default occurs. (*Ibid.*)
- 3) Plaintiff agreed that if the sum of \$339,000.00 is paid without default, Plaintiff will then file a dismissal of the entire action with prejudice, stating that “Plaintiff has agreed to accept \$339,000.00 in full settlement of the case.” (*Ibid.*)
- 4) In the event of a default, the judgment of \$436,856.13, less any amount paid prior to default, shall be immediately due and enforceable as a judgment. (*Ibid.*)
- 5) Since the time of the Settlement Agreement, Defendants have paid \$102,740.04. (*Id.*, ¶ 4.)
- 6) On June 4, 2026, Plaintiff informed Defendants via email that they were in breach of the Settlement Agreement. (*Id.*, ¶ 5, Exh. B.) Since that date, no further payments have been received. (*Ibid.*)

Plaintiff requests judgment against Defendants in the amount of \$334,116.09 (= \$436,856.13 - \$102,740.04).

Defendant implicitly concedes the foregoing by failing to file an Opposition.

Based on the foregoing, the motion is GRANTED.

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The Nichols Partnership LLC v. SRGA LP et al

26CV000499

[1] DEFENDANT GA DEVELOPMENT NAPA VALLEY LP’S MOTION TO DISMISS OR STAY ON GROUNDS OF FORUM NON CONVENIENS

TENTATIVE RULING: The motion to dismiss the action against GA Development Napa Valley LP (GA), on grounds of forum non conveniens based on contract, is GRANTED. The alternative request, to stay the action, is, therefore, MOOT.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.